DELTA BEVERAGES (PVT) LTD

versus

ENITA MOYO

HIGH COURT OF ZIMBABWE
MPOKISENG DUBE J
BULAWAYO 30th October 2025 and 26th November 2025

Civil Trial- Absolution from the instance

N. Mazibuko, for the plaintiff
Z. C Ncube, for the defendant

MPOKISENG DUBE J: This is an application for absolution from the instance in a claim by the plaintiff to vindicate a motor vehicle from a former employee. The facts of the matter are not subject to much controversy. The following is common cause:

1. Defendant is a former employee of the plaintiff.
2. She held a managerial position.
3. It came to an end by way of a dismissal.
4. The plaintiff using its own resources purchased a motor vehicle and allocated it to the defendant.
5. Defendant took possession of such motor vehicle a Toyota Fortuner Reg Number AFN4735.
6. Upon termination of the employer employee relationship plaintiff demanded for the vehicle but defendant refused to hand it back.
7. The said motor vehicle is still registered in the name of the Plaintiff.
8. Defendant is still putting the vehicle to daily use and continuously accruing mileage.

The disputed points at trial are as follows;

1. Whether or not the plaintiff had a motor vehicle policy which entitled managerial employees to be given company motor vehicles to utilise during their tenure as employees.

2. Whether or not defendant had a peculiar arrangement in which a cash loan was advanced to her given to acquire the vehicle outside the company motor vehicle policy.
3. Whether or not the defendant became the owner of the vehicle as it was purchased for her.
4. Whether or not she is entitled to keep the vehicle against repayment of the loan despite having left plaintiff's employ.
5. Whether or not defendant in fact paid off the loan in a once off lump sum RTGS deduction?
6. Whether or not plaintiff is entitled to claim mileage for the continued utilisation of the motor vehicle without its consent.

I must state that in the parties' joint PTC Memorandum the issues referred for trial were captured as follows:

"1. Whether or not the plaintiff is the owner of the motor vehicle being Toyota Fortuner Registration No. AFN 4735.

2. Whether or not the defendant was required to deliver up the motor vehicle to the plaintiff upon the termination of her employment.

3. Whether or not the plaintiff is entitled to a claim for damages and if so, in what amount?

4. Whether the plaintiff purchased and allocated the vehicle, Toyota Fortuner, registration number AFN 4735 to the defendant in terms of a loan schedule applicable to the defendant?

5. Whether the defendant has a right to retain the vehicle pending fully servicing of her loan?

ONUS

On plaintiff on issues 1-3 and on defendant on issues 4 and 5."

In litigation pleadings can be equated to a light house in the olden maritime voyage by sea which always guided vessels to harbour. When a vessel lost sight of the light house it was doomed to be lost on the high seas.

In casu the parties can not abandon the contents of their PTC memorandum which was adopted by the court upon which specific issues where then referred to trial. In the same token

the defendant cannot then abdicate the onus which it accepted as being born by it to prove issues 4 and 5.

Without testifying there would be no one to prove the special peculiar arrangement entered into between the defendant and a Mr Gwebu upon which a vehicle was purchased on loan and given to her to keep as her own outside the company motor vehicle policy.

Similarly, there would be no one to discharge the onus on defendant to prove issue number 5 i.e to satisfy the court that by virtue of her special arrangement with Mr Gwebu she has a right to retain the motor vehicle pending fully servicing her loan.

I must agree with plaintiff's counsel that the defendant's counsel went to great lengths to knit-pick the evidence of the plaintiff. I must make it clear that this is not the appropriate time for such. This ought to occupy the court when both sides of the contest are placed before it more so when the defendant bears the onus of proof on some of the issues as highlighted above.

The Law.

In the case of *Lourenco* v *Raja Dry Cleaners & Steam Laundry Private Limited* SC 96-84 **t**he Supreme Court had occasion to discuss factors to be considered in determining an application for absolution from the instance such as in the present case. The apex court made reference to the earlier South African case of *Mazibuko* v *Santam Insurance Co Ltd and Anor* 1982 (3) SA 125 (AD) at 133, where the court said, at 132H:

> "In an application for absolution made by the defendant at the close of the plaintiff's case the question to which the Court must address itself is whether the plaintiff has adduced evidence upon which a court, applying its mind reasonably, could or might find for the plaintiff; in other words whether plaintiff has made out a *prima facie* case".

In casu, the court is therefore not enjoined to carry out an in-depth analysis of the evidence led thus far or better still the cross examination that the witnesses were put through. The simple reason being that before the court is not the totality of the evidence from which the court may weigh issues on a balance of probabilities. I am further mindful that all questions and positive propositions of fact, together with hypothetical scenarios put forward to the

witnesses by defendant's counsel are not evidence. They are not facts put under oath. They remain what they are, propositions of fact.

Like earlier held by my brother MUSITHU J in the matter of *Kadungure v Pervaiz* HH822-22;

> "A determination of an application for absolution at the close of the plaintiff's case is one that places a court in an invidious position,…….
> An application for absolution requires that the court determines the dispute after having heard just half of the case."

Faced with a similar predicament he cited the authors Herbstein & Van Winsen*:* In their work *The Civil Practice of the High Courts of South Africa, 5th Edition, Vol* 1 @ p 923 as follows:

> "In view of the principles set out above, it is clear that a trial court should be extremely chary of granting absolution at the close of the plaintiff's case. In deciding whether or not absolution should be granted, the court must assume that in the absence of very special considerations, such as the inherent unacceptability of the evidence adduced, the evidence is true. The court should not at this stage evaluate and reject the plaintiff's evidence. The test to be applied is not whether the evidence led by the plaintiff establishes what will finally have to be established. When the plaintiff relies on an inference the court will refuse the application for absolution unless it is satisfied that no reasonable court can draw the inference for which the plaintiff contends. A court may grant absolution from the instance at the close of a plaintiff's case if the plaintiff has failed to establish an essential element of the claim even though the defendant could have succeeded on exception or by way of special plea had the issue been raised by either procedure…"

In the present matter the plaintiff contends that it used funds from its coffers to purchase the motor vehicle in question. It carried out the importation process at its own cost. It dealt with ZIMRA importation procedures and duties plus ZINARA levies. Ultimately it registered the vehicle in its own name. It availed the defendant with further funds to fit accessories on it. It insured the motor vehicle and fitted it with a tracker. Does this not raise an inference that the motor vehicle belongs to the plaintiff? There is surely need for the defendant to rebut such inference.

In the matter of *Yusuf Abdullah Gaibie and Anor v Alexander Paulo Castanheira and Anor* SC58-20 the Learned Justices of Appeal had this to say:

> "The law to be applied in the present circumstances was eloquently articulated by MAKARAU JA in *Competition and Tariff Commission v Iwayafrica Zimbabwe (Pvt) Ltd* SC 58/19 at paras 13-15 where she said the following:
> "[13] The law on when a court may grant absolution from the instance at the close of the plaintiff's case is settled. (See *Supreme Service Station (1969) (Private) Limited v Fox & Goodridge Limited* 1971 (1) ZLR 1 (A) and *United Air Charters (Private) Limited v Jarman* 1994 (2) ZLR 341 (S). The court granting absolution must be satisfied that there is no evidence before it upon which a reasonable court might find for the plaintiff.
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> [14] Expressed differently, the court considering an application for absolution from the instance must ask itself if there is no evidence at all on each and every essential averment that the plaintiff must make to sustain the cause of action. If there is some evidence on all the essential averments, absolution should not be granted. If there is evidence on some but not on all the essential averments, absolution may be granted, for in that instance, the plaintiff will not be able to sustain and perfect its cause of action. This is so because an application for absolution from the instance stands on pretty much the same footing as an application for the discharge of an accused person at the close of the state case *albeit* on a lower threshold of the burden of proof."

The apex court further made reference to the matter of *Katerere v Standard Chartered Bank Zimbabwe Ltd* HB 51-08 which was quoted with approval in *Bakari v Total Zimbabwe (Pvt) Ltd* SC 21-19. It was stated that:

> "The court should be extremely chary of granting absolution at the close of the plaintiff's case. The court must assume that in the absence of very special considerations, such as the inherent unacceptability of the evidence adduced, the evidence is true. The court should not at this stage evaluate and reject the plaintiff's evidence. The test to be applied is not whether the evidence led by the plaintiff establishes what will finally have to be established. Absolution from the instance at the close of the plaintiff's case may be granted if the plaintiff has failed to establish an essential element of his claim- *Claude Neon Lights (SA) Ltd v Daniel* 1976 (4) SA 403(A); *Marine & Trade Insurance Co Ltd v Van Der Schyff* 1972 (1) SA 26(A); *Sithole v PG Industries (Pvt) Ltd* HB 47-05."

With the above eloquent exposition of the law I am of the respectful view that it is incorrect to place the plaintiff's evidence standing alone under the microscope. This court will greatly benefit from hearing the case of the defendant and the closing submissions of both parties at the close of the entire matter. It is only then that this court can resort to an in-depth analysis of every aspect of the evidence and consider its totality.

Resultantly it is ordered that:

1. The defendant's application for absolution from the instance at the close of the plaintiffs' case is hereby dismissed.

2. Costs shall be in the cause.

Calderwood, Bryce Hendrie and Partners, plaintiff's legal practitioners
Ncube & Partners, defendant's legal practitioners